

THE UNIVERSAL HOUSE OF JUSTICE

1974-06-09

Dear Bahá'í Friends,

147.1 Thank you for your letter of 4 March 1974 enclosing the inquiry from the Bahá'í Group of Ísafjörður. It has become apparent from a number of questions we have received that many believers are not clear which are those laws already binding upon the Bahá'ís in the West. We therefore feel it is timely to clarify the situation, and the simplest way is to state those laws listed in the Synopsis and Codification of the Kitáb-i-Aqdas which are not at present binding upon the friends in the western world. For ease of reference we give the numbers of the sections listed. 147.2 IV.A.(4)(c) The law regarding the exemption from obligatory prayer granted to women in their courses.

147.3 IV.A.(10) The law concerning ablutions, with the exception of the ablutions required for the Medium Obligatory Prayer which are described in Section CLXXXII of Prayers and Meditation s and are required for the recitation of that prayer.

147.4 IV.A.(12) The law concerning actions to be taken in place of an Obligatory Prayer missed on account of insecure conditions.

147.5 IV.B.(5)(a) The definition of travelers for the purpose of exemption from fasting. Instead of these definitions the believers in the West should observe the following guidance given by the beloved Guardian's secretary on his behalf: "travelers are exempt from fasting, but if they want to fast while they are traveling, they are free to do so. You are exempt the whole period of your travel, not just the hours you are in a train or car, etc. ..."

147.6 IV.B.(5)(f) The law regarding the exemption from fasting granted to women in their courses. 147.7 IV.C.(1)(i) The laws governing betrothal.

148 216147.8 IV.C.(1)(j) The law concerning the payment of a dowry by the groom to the bride on marriage. 147.9 IV.C.(1)(l) and (m) The laws concerning the traveling of a husband away from his wife. 147.10 IV.C.(1)(n) and (o) The laws relating to the virginity of the wife. 147.11 IV.C.(2)(b) That part of the divorce law relating to fines payable to the House of Justice. 147.12 IV.C.(3) The law of inheritance. This is normally covered by civil laws of intestacy at the present time.

147.13 IV.D.(1)(a) The law of pilgrimage.

147.14 IV.D.(1)(b) The law of Ḥuqúqu'lláh is not yet applied to the western friends. 147.15 IV.D.(1)(d) The law of the Mashriqu'l-Adhkár is gradually being put into effect. 147.16 IV.D.(1)(f) The Bahá'í Festivals are being celebrated by the western friends on their anniversaries in the Gregorian calendar until such time as the Universal House of Justice deems it desirable to pass supplementary legislation necessary for the full implementation of the Badí' calendar.

^{147.17} IV.D.(1)(j) The age of maturity applies only to Bahá'í religious duties as yet. On other matters it is subject to the civil law of each country. The age of administrative maturity in the Bahá'í community has, for the time being, been fixed at 21. ^{147.18} IV.D.(1)(k) For the burial of the dead the only requirements now binding in the West are to bury the body (not to cremate it), not to carry it more than a distance of one hour's journey from the place of death, and to say the Prayer for the Dead if the deceased is a believer over the age of 15.

^{147.19} IV.D.(1)(p) The law of tithes.

^{147.20} IV.D.(1)(q) The law concerning the repetition of the Greatest Name 95 times a day.

^{147.21} IV.D.(1)(r) The law concerning the hunting of animals.

^{147.22} IV.D.(1)(t), (u), (v) and (w) The laws relating to the finding of lost property, the disposition of treasure trove, the disposal of objects held in trust and compensation for manslaughter are all designed for a future state of society. These matters are usually covered by the civil law of each country.

^{147.23} IV.D.(1)(y) (xiv), (xv), (xvi) and (xvii) Arson, adultery, murder and theft are all forbidden to Bahá'ís, but the punishments prescribed for them in the Kitáb-i-Aqdas are designed for a future state of society. Such matters are usually covered by the civil laws of 217 each country.

^{147.24} IV.D.(1)(y) (xxv), (xxx), (xxxi) and (xxxii) The laws prohibiting the use of the type of pools which used to be found in Persian baths, the plunging of one's hand in food, the shaving of one's head and the growth of men's hair below the lobe of the ear. ^{147.25} All the exhortations, listed in section IVD.(3), are applicable universally at the present time insofar as it is possible for the friends to implement them; for example, the exhortation to teach one's children to chant the Holy Verses in the Mashriqu'l-Adhkár can be literally carried out only on a limited scale at the present time, but the friends should, nevertheless, teach their children the Holy Writings as far as possible.

With loving Bahá'í greetings,

THE UNIVERSAL HOUSE OF JUSTICE

¹⁴⁸ Revision of the Functions of Continental Pioneer Committees

[signed: The Universal House of Justice]